

25STCV08181 25STCV08181

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 25STCV08181 Hearing Date: July 15, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV08181

KELLY

OLIVIER vs FCA US, LLC., et al.

July

15, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION TO COMPEL INITIAL DISCLOSURES PURSUANT TO CALIFORNIA CODE OF
CIVIL PROCEDURE § 871.26 AND REQUEST FOR MONETARY SANCTIONS.

RULING:

The Court denies the Motion,
considering the sufficiency of served initial disclosures.

I.

BACKGROUND

The
Court incorporates by reference the Background section of the Minutes entered
on December 19, 2026.

On June 15, 2026, Plaintiff
filed the Motion to Compel Initial Disclosures Pursuant to California Code of
Civil Procedure § 871.26, with a Request for Monetary Sanctions, because of reportedly
incomplete statutory compliance.

Defendant opposes, contending
that it complied with section 871.26, and any remaining requests are Discovery
Act matters, such that there is good cause for denying sanctions.

II.

LEGAL STANDARD

Code of Civil Procedure section 871.26 provides that, unless the party
failing to comply with discovery requirements shows good cause, judges shall
impose sanctions, including \$1,500.00 against a plaintiff's attorney, or
\$2,500.00 against a defendant's attorney, to be paid within 15 business days,
for the failure to comply with initial document production. (Code Civ. Proc., §
871.26, subd. (j)).

As to Lemon Law cases, Code of Civil Procedure section 871.26, effective
January 1, 2025, provides in material part, the following:

“(h) The defendant or manufacturer
shall provide the following documents to all other parties pursuant to the
timelines prescribed in subdivision (b):

(1) Copy of or access to a version of
the owner's manual for a motor vehicle of the same make, model, and year.

(2) Any warranties issued in conjunction with the sale of the motor vehicle.

(3) Sample brochures published for the motor vehicle.

(4) The motor vehicle's original invoice, if any, to the selling dealer.

(5) Sales or lease agreement, if the manufacturer is in possession.

(6) Motor vehicle information reports, including build documentation, component information, and delivery details.

(7) Entire warranty transaction history for the motor vehicle.

(8) Listing of required field actions applicable to the motor vehicle.

(9) Published technical service bulletins ("TSBs")¹ for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.

(10) Published information service bulletins ("ISBs") for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.

(11) Records relating to communications between the manufacturer or dealership and the owner or lessee of the motor vehicle, including those related to repair orders or claims involving the motor vehicle.

(12) Warranty policies and procedure manuals.

(13) Service manuals reasonably related to the nonconformities pertaining to the motor vehicle.

(14) If a pre-suit restitution or replacement request is made, all call recordings of pre-suit communications with the consumer available at the time of service of the complaint.

(15) If a pre-suit restitution or replacement request is made, the manufacturer's written statement of policies and procedures used to evaluate customer requests for restitution or replacement pursuant to "Lemon Law" claims.

(16) If a pre-suit restitution or replacement request is made, any nonprivileged, prelitigation evaluation.

(17) Any warranty extensions or modifications issued by the manufacturer on the motor vehicle."

(Cal. Civ. Proc. Code § 871.26, subd. (h).)

According to a treatise, Code of Civil Procedure Section 871.26 provides:

"(1) Discovery. Within 60 days after the filing of the answer or other responsive pleading, all parties must, without awaiting a discovery request, provide to all other parties an initial disclosure and documents under C.C.P. 871.26(f) (documents plaintiff must provide to all other parties), C.C.P. 871.26(g) (information plaintiff must provide to all other parties), and C.C.P. 871.26(h) (documents defendant or manufacturer must provide to all other parties). (C.C.P. 871.26(b).)

Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed 2 hours, of the plaintiff and the defendant, and if the defendant is not a natural person, the person most qualified to testify on the defendant's behalf. The initial deposition of the person most qualified to testify on the defendant's behalf is limited to the topics listed in C.C.P. 871.26(i). (C.C.P. 871.26(c).)

....

(3) Sanctions. Unless the party failing to comply with C.C.P. 871.26 shows good cause, a court must impose sanctions as set forth in C.C.P. 871.26(j).

(4) Application. C.C.P. 871.26 only

applies to a civil action under C.C.P. 871.20 filed on or after January 1, 2025. (C.C.P. 871.26(l).) C.C.P. 871.26 does not apply to an unrepresented party. (C.C.P. 871.26(k).)”

(4 Witkin, Summary 11th Sales § 334C (2025).)

The Judges Benchbook summarizes discovery sanctions in Lemon Law cases (Civil Proc. Code § 871.26, subd. (j)), as follows:

Sanctions. Unless the party failing to comply with the discovery requirements shows good cause, the judge must impose specified sanctions for failure to comply. These sanctions are in addition to other sanctions the judge may impose under this chapter or any other law (CCP § 871.26(j)):

- For failure to comply with the initial document production, \$1,500 against plaintiff's attorney or \$2,500 against defendant's attorney, paid within 15 business days.
- For failure to comply with the initial deposition requirements, \$1,500 against plaintiff's attorney or \$2,500 against defendant's attorney, paid within 15 business days.
- For plaintiff's repeated noncompliance with CCP § 871.26(b) (initial disclosure and document production), § 871.26(c) (initial depositions), or § 871.26(d) (mediation), dismissal of the case without prejudice and an order for the plaintiff's attorney to pay costs awarded to the manufacturer.
- For a defendant's or manufacturer's repeated noncompliance with CCP § 871.26(b), (c), or (d), evidentiary sanctions precluding evidence regarding the motor vehicle's nonconformity or whether it was repaired to match the warranty.
- Notwithstanding Bus & P C § 6068(o)(3), the judge may require the sanctioned attorney to report the sanction to the State Bar within 30 days.

(Cal. Judges Benchbook Civ. Proc. Discovery § 23.49.)

III.

ANALYSIS

Plaintiff argues that Defendant failed to provide verified responses, has produced only a fraction of the documents required by section 871.26(h), and omitted categories of records that exist in Defendant's warranty administration systems. Plaintiff contends that the section requires disclosures of, "complete, verified responses to all section 871.26(h) mandatory initial disclosure categories, including all records maintained in Defendant's DealerCONNECT system, warranty transaction history, diagnostic records, technical service bulletins, informational service bulletins, recall records, and service manuals reasonably related to the nonconformities alleged in the Complaint." (Motion, 5:13-17.)

Defendant counterargues that section 871.26 does not require the verified discovery responses that Plaintiff seeks, which instead must be addressed pursuant to the California Discovery Act as an option.

The Court determines that there is no governing case about legislative interpretation of the scope of disclosure and production under section 871.26. "A legal proposition asserted without apposite authority necessarily fails." (People v. Taylor (2004) 119 Cal.App.4th 628, 643.) Issues of legislative interpretation involve pure questions of law that the reviewing courts independently review de novo. (E.g., Wolf v. CDS Devco (2010) 185 Cal.App.4th 903, 913.)

" 'A court must, where reasonably possible, harmonize statutes, reconcile seeming inconsistencies in them, and construe them to give force and effect to all of their provisions.' " (Gamo v. Merrell (2025) 113 Cal.App.5th 656, 663.) " 'It is a cardinal rule of statutory construction that statutes relating to the same subject matter must be read together and reconciled whenever possible.' " (Womack v. San Francisco Community College Dist. (2007) 147 Cal.App. 854, 860-861.) "The legislature is ... presumed to have enacted legislation with existing law in mind." (Harris v. Verizon Communications (2006) 141 Cal.App.4th 573, 585, disapproved on other grounds by Azure Ltd. v. I-Flow Corp. (2009) 46 Cal.4th 1323, 1336.) "A statute will be construed in light of the common law unless the Legislature 'clearly and

unequivocally' indicates otherwise." (Reynolds v. Bement (2005) 36 Cal.4th 1075, 1086, disapproved on other grounds by Martinez v. Combs (2010) 49 Cal.4th 35, 66.) There is no preemption of the Discovery Act stated in Code of Civil Procedure section 871.26. Parties cannot operate outside of the parameters of the Discovery Act that has subsumed the entire field pertaining to the gathering evidence in preparation for trial. (Pillsbury, Madison & Sutro v. Schectman (1997) 55 Cal.App.4th 1279, 1288.)

The Court does not order disclosure and production falling outside the scope of section 871.26, as to which the Discovery Act would serve as the prescribed procedure. Analogously, where a specialized Pitchess motion does not apply to the information sought, the proper procedure is to demand an inspection of the information pursuant to Code of Civil Procedure section 2031.030. (Ibarra v. Superior Court (2013) 217 Cal.App.4th 695, 706.)

Additionally, the Motion is accompanied by no Declaration or other proof to show that Defendant withheld existing and available documents required by section 871.26. Statements in briefs filed are not supportive evidence. (Turrieta v. Lyft, Inc. (2024) 16 Cal.5th 664, 697.)

IV.

CONCLUSION

The Court denies the Motion and finds good cause for the opposition to sanctions.